

2:00 PM
LINE" 6

25-CIV-05293

GLORIA SANCHEZ NGUYEN VS. GOODWILL OF THE SAN FRANCISCO BAY, A CALIFORNIA CORPORATION

**GLORIA SANCHEZ NGUYEN
GOODWILL OF THE SAN FRANCISCO BAY, A CALIFORNIA CORPORATION**

**PARVIZ DARABI
MICHAEL A. WERTHEIM**

PLAINTIFF GLORIA NGUYEN'S MOTION TO BE RELIEVED AS COUNSEL OF RECORD

TENTATIVE RULING:

The unopposed motion of Parviz Darabi to be relieved as counsel of record for Plaintiff Gloria Sanchez Nguyen is **GRANTED**. Pursuant to California Rules of Court, rule 3.1362(e), the order relieving counsel does not become effective until proof of service of a copy of the signed order on the client has been filed with the Court.

**UD LAW AND MOTION CALENDAR
THURSDAY, JUNE 18, 2026**

2:00 PM

LINE: 1

26-UDL-00133

MERCY HOUSING CALIFORNIA VS. IMAD OUBELLA, ET AL

MERCY HOUSING CALIFORNIA
IMAD OUBELLA

DANIEL M. BORNSTEIN
PRO SE

PLAINTIFF MERCY HOUSING CALIFORNIA'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Plaintiff Mercy Housing California's unopposed Motion for Summary Judgment, filed June 1, 2026, is **GRANTED**. (Code Civ. Proc., §§ 437c, 1170.7.)

Plaintiff's Request for Judicial Notice, filed June 1, 2026, is **GRANTED**. (Evid. Code, § 452, subd. (d).) On its own motion, the Court also takes judicial notice of Plaintiff's Motion to Compel, filed April 3, 2026, in which Plaintiff requested an order deeming certain requests for admission admitted. The Court takes judicial notice of the existence and filing of these court records, but not the truth of any disputed factual assertions contained in them.

BACKGROUND

This is a residential unlawful detainer action involving the property located at 2700 Middlefield Road, Unit 318, Redwood City, California. Plaintiff had Defendant Imad Oubella served with a 10-day notice to quit after Defendant allegedly physically assaulted another resident.

In February 2026, Plaintiff served Defendant with several sets of written discovery, including requests for admission. Defendant did not respond to the requests for admission. Plaintiff then filed a motion to have the requests deemed admitted, which the Court granted on April 15, 2026. (Apr. 15, 2026 Order.)

By virtue of the April 15, 2026 order, Defendant is deemed to have admitted 29 separate requests for admission, including the following:

- all facts set forth in the 10-day notice to quit served on Defendant are true;
- Plaintiff served Defendant with the 10-day notice to quit on December 30, 2025;
- Defendant failed to surrender possession of the premises after expiration of the 10-day notice to quit;
- all allegations in the Complaint are true;

- Defendant has no admissible evidence that the 10-day notice to quit is defective;
- Defendant has no applicable affirmative defenses to the Complaint;
- Plaintiff is entitled to possession of the premises against Defendant;
- on or about December 4, 2025, Defendant physically assaulted another resident by striking her and pushing her down, causing her to fall, hit her head, and lose consciousness;
- on or about December 4, 2025, Defendant threatened the resident he physically assaulted by stating, “Are you scared of me now? I could kill you”; and
- on or about December 4, 2025, the Redwood City Police Department was required to intervene, and Defendant was arrested.

The above admissions are excerpts from Defendant’s deemed admissions. Defendant also admitted that he has no admissible evidence supporting any of his claimed defenses.

LEGAL STANDARD

In an unlawful detainer action, a motion for summary judgment may be made at any time after the answer is filed on five days’ notice. (Code Civ. Proc., § 1170.7.) The timing requirements imposed by Code of Civil Procedure section 437c, subdivision (a), and the separate statement requirement imposed by section 437c, subdivision (b), do not apply to summary judgment motions in unlawful detainer actions. (Code Civ. Proc., § 437c, subd. (n).) In all other respects, a motion for summary judgment in an unlawful detainer action is granted or denied on the same basis as a motion under section 437c. (Code Civ. Proc., § 1170.7.)

A motion for summary judgment shall be granted if the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

A plaintiff moving for summary judgment has met its burden of showing there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling it to judgment. (Code Civ. Proc., § 437c, subd. (p)(1).) Once the plaintiff meets that burden, the burden shifts to the defendant to show that a triable issue of material fact exists as to the cause of action or a defense. (Ibid.) The defendant may not rely on the allegations or denials in the pleadings, but must set forth specific facts showing that a triable issue of material fact exists. (Ibid.)

ANALYSIS

Plaintiff’s unopposed Motion for Summary Judgment is **GRANTED**. Defendant has admitted that all allegations in Plaintiff’s unlawful detainer Complaint and in the 10-day notice to quit served on Defendant are true. (RFA Nos. 4, 7.) Defendant admitted that he was served with the notice to quit and remained in possession after expiration of the period stated in the notice. (RFA Nos. 4–6.)

Defendant further admitted that he physically assaulted another resident, causing her to fall, hit her head, and lose consciousness, and that he threatened to kill the other resident, resulting in police intervention and Defendant’s arrest. (RFA Nos. 15–17.) Defendant also admitted that he has no valid affirmative defenses to the Complaint and that Plaintiff is entitled to possession of the premises. (RFA Nos. 13–14.)

Plaintiff has met its burden under Code of Civil Procedure section 437c, subdivision (p)(1), to show that there is no triable issue of material fact as to Plaintiff's unlawful detainer claim. (Code Civ. Proc., § 1161, subd. 4.) Defendant offered no evidence in response and did not oppose the motion.

Accordingly, Plaintiff Mercy Housing California's Motion for Summary Judgment is **GRANTED**. Defendant Imad Oubella's lease or tenancy is terminated. Plaintiff is entitled to entry of judgment for possession of the premises against Defendant Imad Oubella.

2:00 PM

LINE: 2

26-UDL-00230

ABELARDO ARTEAGA SHIRAKI VS. ROHINI NIRMA SINGH, ET AL

ABELARDO ARTEAGA SHIRAKI
ROHINI NIRMA SINGH

RAYMOND R. MILLER
MASUMI M. SAKAI

DEFENDANT DYHANA ROELL'S MOTION TO SET ASIDE DEFAULT/JUDGMENT

TENTATIVE RULING:

This motion was originally set for hearing on May 7, 2026. The matter was continued to permit the contesting parties an opportunity to present argument before the Court. The Court's May 7, 2026 tentative ruling is set forth below:

For the reasons stated below, the Motion to Set Aside Default and Default Judgment and Quash Service of Summons (the "Motion") brought by Defendant Dhyana Roell, erroneously sued as Dhyana Rowell ("Defendant"), is **GRANTED**.

BACKGROUND

According to the allegations of the Complaint, Maya Wati Singh died on March 7, 2023, and the single-family residential property located at 1015 Herman Street, San Bruno, California 94066 (the "Premises") is now administered by Plaintiff, the court-appointed administrator of the decedent's estate. Defendants are alleged to be non-heir occupants of the Premises who remain in possession without authorization from the estate of Ms. Singh and without any lease or tenancy created by Plaintiff. Defendants are therefore alleged to be unauthorized holdover occupants rather than lawful tenants.

Plaintiff further alleges that Defendants' continued occupancy interferes with Plaintiff's fiduciary duty to marshal and preserve estate assets. Specifically, Plaintiff alleges that Defendants' occupancy prevents inspection and lawful marketing of the Premises and exposes the estate to carrying costs, liability, and waste. Accordingly, Plaintiff served Defendants with a Three-Day Notice to Vacate Property on January 30, 2026. (Complaint, item 10 & Exh. 2.) However, although the Complaint references a proof of service as Exhibit 3, no such proof of service is attached. (Id., item 10.d.)

As to Defendant Dhyana Roell, Plaintiff requested entry of default and clerk's judgment for restitution of the Premises and issuance of a writ of execution on April 8, 2026. The Clerk entered default the same day. (Request for Entry of Default filed Apr. 8, 2026 ("Default").) On April 14, 2026, the Clerk entered judgment awarding possession of the Premises to Plaintiff. (Judgment—Unlawful Detainer filed Apr. 14, 2026 ("Default Judgment").) Plaintiff thereafter filed a Notice of Entry of Judgment on April 16, 2026, reflecting service upon Defendant.

Defendant now moves to set aside the Default and Default Judgment and to quash service of summons.

The Motion is **GRANTED**.

DISCUSSION

Defendant asserts that she remained at home daily caring for her autistic child after being approached by Plaintiff's counsel in January 2026 and told she needed to vacate the Premises within three weeks. Defendant maintains she had no knowledge of the unlawful detainer proceedings and contends Plaintiff failed to exercise reasonable diligence in attempting service. (Motion, 8:12-16.)

Defendant declares that she first learned of the action on April 17, 2026, after receiving a courtesy notice from the Court regarding reassignment of the unlawful detainer matter. Defendant further declares that she contacted the Clerk's Office and was advised to await service of the summons and complaint, but was never served despite the subsequently filed Proof of Service of Summons stating otherwise.

Defendant's declaration sufficiently establishes surprise within the meaning of Code of Civil Procedure section 473, subdivision (b), because Defendant asserts she did not learn of the action until after entry of default and the Default Judgment. The remaining requirements for relief under section 473, subdivision (b), have also been satisfied.

The Proof of Service of Summons filed March 20, 2026 ("Proof of Service") purports to establish both personal service and substituted service upon Defendant. (Proof of Service, items 5.a, 5.b.(2).) However, the Proof of Service does not establish that service was performed by a registered California process server. Accordingly, contrary to Plaintiff's contention, the Proof of Service is not entitled to the rebuttable presumption affecting the burden of proof under Evidence Code section 647.

In opposition, Plaintiff submits the declaration of the process server, who again states that Defendant was served with the unlawful detainer summons, complaint, and related pleadings identified in the filed Proof of Service. (Okuda-Dennis Decl., ¶ 8.) However, the declaration largely repeats the conclusory assertions contained in the Proof of Service and provides minimal factual detail concerning the manner in which the process server identified Defendant.

Plaintiff relies upon *Floveyor International, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 for the proposition that filing a statutorily compliant proof of service creates a rebuttable presumption of proper service. However, *Floveyor* also makes clear that the party asserting valid service bears the burden of establishing all jurisdictional facts. (Id. at p. 796.)

Plaintiff's remaining authorities are similarly unpersuasive under the circumstances presented here. Plaintiff cites *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390 for the proposition that a "simple denial of service" is insufficient to overcome a valid proof of service. However, the cited opinion does not contain that quoted language. Rather, *Zara* addressed the evidentiary effect of a declaration by a registered California process server entitled to the statutory presumption under Evidence Code section 647. No such presumption applies here.

Likewise, Plaintiff cites *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544 for the proposition that self-serving declarations lacking corroboration are insufficient to rebut the presumption of valid service. The cited case contains no such language and is only marginally relevant to the issues presently before the Court.

The evidence presented by both parties is limited. Defendant declares she was never personally served and first learned of the lawsuit through the Court's courtesy notice. Plaintiff, by contrast, relies upon a Proof of Service and supporting declaration that provide minimal detail regarding the process server's identification of Defendant or the circumstances of service. Notably, the process server's declaration merely states that "[t]he individual identified herself as Dhyana Roell/Dhyana Rowell and accepted the documents." (Okuda-Dennis Decl., ¶ 9.)

At bottom, the issue turns upon conflicting evidence regarding service. California law strongly favors resolution of cases on their merits, and doubts regarding relief from default are to be resolved in favor of the moving party. As explained in *Rosenthal v. Garner* (1983) 142 Cal.App.3d 891, 898:

"It is also well established that it is the policy of the law to bring about a trial on the merits whenever possible, so that any doubts which may exist should be resolved in favor of the application, to the end of securing to a litigant his day in court and a trial upon the merits...."

Similarly, "when a party in default moves promptly to seek relief, very slight evidence is required to justify a trial court's order setting aside a default." (*Uriarte v. United States Pipe & Foundry Co.* (1996) 51 Cal.App.4th 780, 790.)

Here, Defendant acted promptly upon learning of the Default Judgment. Under these circumstances, Defendant has presented sufficient evidence to warrant relief under Code of Civil Procedure section 473, subdivision (b).

The Court further notes that evidentiary conflict cases are distinguishable from cases in which no showing has been made under section 473. (See *Iott v. Franklin* (1988) 206 Cal.App.3d 521, 530.) Resolution of conflicts in the evidence is committed to the trial court.

Accordingly, because substantial doubt exists regarding whether Defendant was properly served, that doubt must be resolved in Defendant's favor. The motion to quash service of summons is therefore **GRANTED**, and the Default and Default Judgment are **VACATED**.

OTHER ARGUMENTS

Defendant also invokes Code of Civil Procedure section 473.5. Although the Court need not rely upon that statute in light of the ruling above, the Court notes that Plaintiff's opposition concerning section 473.5 is not persuasive.

Plaintiff additionally argues that the Notice of Motion was defective because it omitted the hearing date, time, and department when initially filed. Plaintiff cites *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697. However, Carlton held that any defect in notice may be waived where the opposing party files an opposition, appears, and demonstrates no prejudice arising from the alleged defect. Here, Plaintiff filed an opposition to the Motion and does not establish prejudice arising from the asserted notice defect.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by

law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 3

26-UDL-00230

ABELARDO ARTEAGA SHIRAKI VS. ROHINI NIRMA SINGH, ET AL

**ABELARDO ARTEAGA SHIRAKI
ROHINI NIRMA SINGH**

**RAYMOND R. MILLER
MASUMI M. SAKAI**

DEFENDANT ROHINI SINGH'S MOTION FOR ORDER SETTING ASIDE AND VACATING DEFAULT AND DEFAULT JUDGMENT AND GRANTING DEFENDANT LEAVE TO DEFEND

TENTATIVE RULING:

For the reasons stated below, Defendant Rohini Nirma Singh's Motion for Order Setting Aside and Vacating Default and Default Judgment and Granting Leave to Defend is **GRANTED**.

Plaintiff requested entry of Defendant's default and a clerk's judgment for restitution of the premises and issuance of a writ of possession on April 6, 2026. The Clerk entered Defendant's default on April 7, 2026, and entered default judgment for possession on April 14, 2026. Defendant now moves to set aside the default and default judgment on the grounds that she was not served and did not receive actual notice in time to defend.

The motion is well taken. The record does not establish valid service sufficient to support the default and default judgment. Plaintiff relies on the Supplemental Declaration of Chaz-Kawika Tadashi Okuda-Dennis, who states that he personally served Defendant on March 12, 2026. However, the declaration does not state that the declarant is a marshal, sheriff, or registered process server. Service of a prejudgment claim of right to possession under Code of Civil Procedure section 415.46 must be effected by a marshal, sheriff, or registered process server. (Code Civ. Proc., § 415.46, subd. (b).) On this record, Plaintiff has not shown compliance with that requirement.

Defendant also presents evidence that she did not receive actual notice of the unlawful detainer action in time to defend. She declares that she was ill, took prescribed medication, and was asleep at the time service allegedly occurred. She further declares that the residence's Ring camera did not record movement at the door at the times stated in the proofs of service. Defendant states that she first learned of the action after receiving the notice of entry of judgment. These facts support relief under Code of Civil Procedure section 473.5 because service did not result in actual notice in time to defend, and the record does not show that Defendant's lack of notice resulted from avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5, subds. (a), (c).)

The Court also declines to consider Plaintiff's opposition. The hearing is set for June 18, 2026. Opposition papers were due no later than June 4, 2026, and reply papers were due no later than June 10, 2026. (Code Civ. Proc., § 1005, subd. (b).) Plaintiff filed the opposition on June 10, 2026, the reply deadline, thereby depriving Defendant of a meaningful opportunity to respond.

The Court further notes that Plaintiff's declaration confirms that issues concerning whether the premises belong to the estate or to a trust are set to be heard in the Probate Court on June 25, 2026. The Court does

not decide those title or probate issues here. However, the existence of those issues further supports allowing Defendant to appear and defend before a judgment for possession is enforced.

California law favors disposition of cases on their merits, and doubts concerning relief from default are generally resolved in favor of allowing a hearing on the merits. (*Barnes v. Witt* (1962) 207 Cal.App.2d 441, 447.) Accordingly, the default entered on April 7, 2026, and the default judgment entered on April 14, 2026, are set aside. Defendant is granted leave to file and serve her proposed answer.

If this tentative ruling is uncontested, it shall become the order of the Court. Defendant's counsel shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

Posted: 3:00 P.M.

